

misunderstanding of the single publication rule. Specifically, it appears based on the wrong use of the phrase “cause of action.”

The single publication rule’s reference to “cause of action” is akin to that under the primary rights theory; “The violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.” (*Wulfjen v. Dolton* (1944) 24 Cal.2d 891, 895-96.) Thus, the single publication rule does not bar a plaintiff from asserting a claim – based on a single violation of a primary right – under several different legal theories. Rather, it serves to alter the common law principal “that each communication of a defamatory remark to a new audience constitutes a separate ‘publication,’ giving rise to a separate cause of action, [which] led to the conclusion that each sale or delivery of a copy of a newspaper or book containing a defamation also constitutes a separate publication of the defamation to a new audience, giving rise to a separate cause of action for defamation.” (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1243-1244.)

Ms. Scheuner fails, therefore, to persuade the Court that RORE’s claims, or any of them, are barred by the single publication rule.

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In The Matter of Allison Busse

26CV000841

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Bryan Vu v. Edward Erik Eriksson

26CV001045

SPECIAL MOTION TO STRIKE

TENTATIVE RULING: The motion is GRANTED IN PART. The second, third, fourth, and fifth causes of action are stricken from the Complaint pursuant to Code of Civil Procedure section 425.16. Paragraphs 14, 15, 16, and 18 of the Complaint are stricken pursuant to Code of Civil Procedure section 436, subdivision (a).

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of